

LAWS OF GUYANA

LABOUR ACT

CHAPTER 98:01

Act
2 of 1942
Amended by

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42	of	1955
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CHAPTER 98:01

LABOUR ACT

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CHAPTER 98:01

LABOUR ACT

1953 Ed.
c. 103

2 of 1942

An Act to provide for the establishment of a Department of Labour, for the regulation of the relationship between employers and employees and for the settlement of differences between them.

[23RD JANUARY, 1942]

Short title.

1. This Act may be cited as the Labour Act.

Interpretation.
[5 of 1974]

2. (1) In this Act—

“contract” or “contract of service” means any agreement, understanding, or arrangement whatever on the subject of wages whether written or oral, whether direct or indirect, to which any employer and any employee are parties, or are assenting, or by which they are mutually bound to each other;

“complaint” means a complaint or information under the Summary Jurisdiction Acts;

“employer” includes attorney, agent, foreman, manager, clerk, and any other person engaged in the hiring, employing or superintending the labour or service of any employee;

c. 85:02

“money” means legal tender notes and legal tender coins within the meaning of the Bank of Guyana Act;

“occupation” includes agriculture, business, commerce, industry and trade;

“trade dispute” means any dispute between employers and workmen, or between workmen and workmen, which is connected with the employment or non-employment, or terms of the employment, or with the conditions of labour, of any person;

“wages” means any money or other thing had or contracted to be paid, delivered, or given as a recompense, reward or remuneration for any work or labour done or to be done, whether within a certain time or to a certain amount, or for a time or an amount uncertain.

(2) Every reference in this Act to a Labour Officer shall include a reference to a person employed as an Agricultural Assessor in the Ministry.

PART I APPOINTMENT OF CHIEF LABOUR OFFICER AND STAFF

Appointment
of Chief Labour
Officer and
other officers

3. (1) There shall be a Chief Labour Officer, a Deputy Chief Labour Officer, an Assistant Chief Labour Officer, and such number of Senior Labour Officers and Labour Officers as

and clerks.
[12 of 1967]

may be necessary.

(2) There shall also be such officers and clerks in the Department of the Chief Labour Officer as may be required.

(3) The Deputy Chief Labour Officer and the Assistant Chief Labour Officer shall act as assistants generally to the Chief Labour Officer in the performance of his duties.

(4) In the absence of the Chief Labour Officer, the Deputy Chief Labour Officer or, in his absence, the Assistant Chief Labour Officer shall have all the powers and may perform all the duties of the Chief Labour Officer.

(5) The Senior Labour Officers and Labour Officers and the officers and clerks shall perform such duties as may be assigned to them by the Chief Labour Officer.

PART II CONCILIATION

Powers of
Minister in case
of trade
disputes.
[8 of 1975]

4. (1) Where a difference exists or is apprehended between an employer or any class of employers, and employees, or between different classes of employees, the Minister may, if he thinks fit, exercise all or any of the following powers, namely —

- (a) inquire into the causes and circumstances of the difference;
- (b) take such steps as to him may seem expedient for the purpose of promoting a settlement of the difference;
- (c) with the consent of both parties to the

difference, or of either of them, or without their consent, refer the matter for settlement to the arbitration of an arbitration tribunal consisting of one or more persons appointed by the Minister except that the Minister shall not refer a difference for settlement to arbitration otherwise than with the consent of both parties to the difference, unless he notifies the parties that he is satisfied that the continuance of the difference is likely to be gravely injurious to the national interest.

(2) If a tribunal is so appointed, it shall inquire into the causes and circumstances of the difference by communication with the parties and otherwise shall endeavour to bring about a settlement of the difference, including the making of its award as required by this section, and shall report its proceedings to the Minister.

(3) If a settlement of the difference is effected either under subsection (1)(b) or by arbitration upon a reference made with the consent of both parties to the difference, a memorandum of the terms thereof shall be drawn up and signed by the parties or their representatives, and a copy thereof shall be delivered to and kept by the Minister.

(4) With respect to any reference to arbitration otherwise than with the consent of both parties to the difference, the following provisions of this subsection shall apply—

- (a) upon the appointment of the tribunal, the Minister shall furnish the tribunal with its terms of reference containing a statement of the causes

and circumstances of the difference between the parties into which the tribunal is required to inquire;

- (b) the tribunal shall, in respect of any matter referred to it, make its award thereon as soon as practicable and every award so made shall be notified by the tribunal to the Minister and to the parties to the difference except that if the Minister so requests the tribunal shall as soon as conveniently possible make an interim award with respect to any matter referred to it;
- (c) the award made by the tribunal shall be binding on the parties to whom it relates and as from the date of such award or as from such other date having retrospective effect as may be specified therein it shall be an implied term of the contract between the employer and employees to whom the award relates that the rate of wages to be paid and the conditions of employment to be observed under the contract shall be in accordance with such award until varied by a subsequent agreement or award.

(5) Any employer who fails to comply with an award made by a tribunal in pursuance of a reference made to it otherwise than with the consent of both parties to the difference, is liable on summary conviction to a fine of one thousand dollars, and in the case of a continuing offence to a further fine of one hundred dollars for each day on which the offence continues.

(6) A copy of the award of a tribunal certified by the Permanent Secretary shall be conclusive evidence in all courts of the terms of the award therein contained.

(7) In subsection (4)(c) and in subsections (5) and (6) the expression 'award' includes an interim award.

Exclusion of c.
7:03

5. (1) The Arbitration Act shall not apply to the settlement by arbitration of any difference or dispute under section 4 of this Act.

(2) The Minister may make regulations for the conduct of arbitration proceedings under section 4.

Power of
Minister to
appoint
Advisory
Committee in
case of existing
or
apprehended
trade dispute.

6. (1) Where any trade dispute exists or is apprehended the Minister may, if he thinks fit, refer any matters appearing to him to be connected with, or relevant to, such dispute or apprehended dispute to an Advisory Committee appointed by him for the purpose of such reference, and the Committee shall inquire into the matters referred to it and shall report thereon and make such recommendations as it may deem expedient to the Minister.

(2) An Advisory Committee shall consist of a chairman and such number of members as the Minister may deem expedient.

PART III REGULATION OF WAGES

Regulation of
wages

7. (1) Whenever the Minister deems it expedient that steps should be taken to regulate the wages paid in any occupation in Guyana or any part thereof he may appoint an Advisory Committee to investigate the conditions of employment in such occupation and to make recommendations as to the minimum rates of wages which

should be payable.

Constitution. (2) The Advisory Committee shall include representatives of employers and employees and such other members as the Minister may deem fit.

Order
prescribing
rates payable. 8. (1) On considering the recommendations of the Committee the Minister may, subject to negative resolution of the National Assembly, make an order prescribing the minimum rates of wages payable.

(2) The order may prescribe time-rates, piece-rates and overtime rates, or any of them.

(3) When a rate of wage is prescribed in respect of a part of Guyana the boundaries thereof shall be set out in the order.

(4) Any such rate as aforesaid or the revocation or variation of any such rate shall become effective on the date on which the order is published in the *Gazette* or on such earlier or later date as is specified in that behalf in the order:

Provided that—

- (a) no date earlier than that on which the order is published in the *Gazette* shall be specified in any order under this subsection unless the Minister is satisfied that the circumstances of the case are such as to justify specially favourable treatment; and
- (b) no date shall be so specified which is more than one month anterior to the date on which the order is published in the *Gazette*.

Overtime rates.

(5) The expression “overtime rate” means a rate (whether a time-rate or a piece-rate) to apply, in substitution for the prescribed rate which would otherwise be applicable, in respect of hours worked by an employee in any week or on any day in excess of the number of hours declared in regulations made by the Minister under this Act to be the normal number of hours per week or for that day in the occupation.

Procedure for making orders under s. 8(1).
Notice of intention.

9. (1) Before the Minister makes an order under section 8(1) or (3), he shall, in such manner as he thinks best adapted for informing persons affected, cause to be published notice of his intention to make the order, of the place where copies of the draft order may be obtained, and of the time, which shall not be less than thirty days, within which any objection made with respect to the draft order must be sent to the Minister.

Objections to draft order.

(2) Every objection must be in writing, and must state –

- (a) the specific grounds of objection; and
- (b) the omissions, additions or modifications asked for.

Consideration by Minister.

(3) The Minister shall consider any objection which is made by or on behalf of any persons appearing to him to be affected and which is sent to him within the time fixed in that behalf.

Formal and informal inquiries.

(4) Before confirming the draft order the Minister—

- (a) may appoint a competent person to hold an inquiry with regard to any draft order and to report to him thereon; or

- (b) may make such other or further inquiries as he deems necessary either through the medium of the Advisory Committee or otherwise.

Amendment of
draft order.

(5) After considering all the objections made and the report of any inquiry held or made under the foregoing provisions of this section, the Minister may, if he thinks fit, amend the draft order.

Formal inquiry.
Appearance of
persons
affected.

(6) On an inquiry held under subsection (4)(a), the Permanent Secretary or any other officer appointed by the Minister in that behalf and any objector or other person who appears to the person holding the inquiry to be affected or the agent of such objector or other person may appear at the inquiry.

Examination of
witnesses on
oath.

(7) The witnesses at such inquiry may, if the person holding it thinks fit, be examined on oath, which oath that person is hereby authorised to administer.

(8) Subject as aforesaid, the inquiry and all proceedings preliminary and incidental thereto shall be conducted in accordance with regulations made by the Minister.

Fee to person
holding formal
inquiry.

(9) The fee to be paid to the person holding the inquiry shall be such as the Minister may direct, and shall be deemed to be part of the expenses of the Ministry in the execution of this Part.

Minister to
prescribe rates
of wages in
certain
circumstances.
[22 of 1978]

9A. The Minister, whenever he deems it expedient, having regard to the special circumstances of any particular class of employees in any occupation and to any representations made to him by the employees and their employer that steps should be taken to regulate the wages in any such occupation, may, without appointing an Advisory

Committee under section 7, make an Order which shall be subject to negative resolution of the National Assembly prescribing the minimum rates of wages payable and he shall have like powers for the purpose of making an Order under this section as are conferred on him by section 8 (except subsection (1) thereof), and section 9 shall also not apply to an order made by the Minister under this section by virtue of the application of section 8(3).

Record of
wages to be
kept.
[4 of 1972
20 of 1994]

10. It shall be the duty of every employer in an occupation in respect to which rates of wages have been prescribed to keep such records of wages as are necessary to show that the provisions of this Part are being complied with in respect of persons in his employment, and if he fails to do so he shall be liable on summary conviction in respect of each offence to a fine of fifteen thousand, six hundred and twenty-five dollars, and also to a fine of six hundred and twenty-five dollars for every day during which the default continues after conviction.

Conditions of
employment of
persons
incapable of
earning wages
at prescribed
rates.

11. (1) If, on application in that behalf, the Permanent Secretary is satisfied that any employee employed or desiring to be employed in any occupation on time-work to which a prescribed rate is applicable is affected by any infirmity or physical injury which renders him incapable of earning that prescribed rate, the Permanent Secretary may, if he thinks fit, grant to the employee, subject to such conditions, if any, as he may prescribe, a permit exempting the employment of the employee from the provisions of this Part relating to the payment of wages at less than the prescribed rate, and while the permit is in force the employer shall not be liable to any penalty for paying wages to the employee at a rate less than the prescribed rate so long as the conditions prescribed by the Permanent Secretary on the grant of the permit are complied with.

Employee to
inform

(2) Where the duration of any permit granted to an

employer of
duration of
permit.

employee under subsection (1) is limited the employee shall give written notice to the employer of the date on which the permit is due to expire.

Recovery of
sums short-
paid to persons
employed
under the
preceding
subsection.

(3) Where a permit granted in respect of an employee under subsection (1) contains a condition for the payment of wages to the employee at a rate not less than the rate therein specified, the amount of wages that may be recovered from an employer of the employee pursuant to section 12(2) shall as respects any period during which the permit had effect, be calculated on the basis of the rate so specified instead of on the basis of the prescribed rate.

Penalty for not
paying wages
in accordance
with pre-
scribed or
agreed rates.
[42 of 1955
4 of 1972
20 of 1994]

12. (1) Where in any occupation rates of wages have been prescribed an employer shall in cases to which the prescribed rate is applicable pay wages to the person employed at not less than such rate clear of all deductions save as in this Act prescribed and if he fails to do so he shall be liable on summary conviction to a fine of fifteen thousand, six hundred and twenty-five dollars and on a second or subsequent conviction to a fine of forty-six thousand, eight hundred and seventy-five dollars.

(1A) Where in any occupation rates of wages have not been prescribed, an employer shall pay wages to the person employed at the rate agreed upon between them, and if the employer fails to do so, he shall be liable on summary conviction to a fine of fifteen thousand, six hundred and twenty-five dollars, and on a second or subsequent conviction to a fine of forty-six thousand, eight hundred and seventy-five dollars.

(2) Where an employer has been convicted under this section for failing to pay wages at not less than the prescribed or agreed rate to any employee, then, if notice of intention so to do has been served with the summons or warrant, evidence may be given of any failure on the part of the employer to pay wages at not less than the prescribed or

agreed rate to that employee at any time during the two years immediately preceding the date on which the information was laid or the complaint made, and on proof of the failure the court shall, by the conviction, order the employer to pay such sum as in the opinion of the court represents the difference between the amount which, having regard to the provisions of this Part, ought properly to have been paid to the employee by way of wages during the said period and the amount actually so paid:

Provided that the power to order the payment of wages under this subsection shall not be in derogation of any right of the person employed to recover wages by any other proceedings.

Offences by
agents.

(3) Where an offence for which an employer is by virtue of this Part liable to a fine has in fact been committed by some agent of the employer or other person, that agent or other person shall be liable to be proceeded against for the offence in the same manner as if he were the employer, and either together with or before or after the conviction of the employer, and shall be liable on conviction to the same punishment as that to which the employer is liable.

Saving as to
employer when
agent
convicted.

(4) Where an employer who is charged with an offence against this Part proves to the satisfaction of the court that he has used due diligence to enforce the execution of this Part, and that the offence was in fact committed by his agent or some other person without his knowledge, consent or connivance, he shall, in the event of the conviction of that agent or other person for the offence, be exempt from any fine in respect of the offence, without prejudice, however, to the power of the court under subsection (2) to adjudge him to pay any sum which appears to the court to be due to the person employed on account of wages.

Prevention of
evasion.

(5) Any shopkeeper, dealer, or trader, who by way of trade makes any arrangement, express or implied,

with any employee in pursuance of which the employee performs any work for which a prescribed rate of wages has been fixed, shall be deemed for the purposes of this Part to be the employer of the employee, and the net remuneration obtainable by the employee in respect of the work after allowing for his necessary expenditure in connection with the work shall be deemed to be wages.

(6) Where the immediate employer of any employee to whom a prescribed rate of wages applies is himself in the employment of some other person, and that employee is employed on the premises of that other person, that other person shall for the purposes of this section be deemed to be the employer of the employee jointly with the immediate employer.

(7) On any prosecution of a person for failing to pay wages at not less than the prescribed or agreed rate, it shall lie on that person to prove by the production of the proper wages sheets or other records of wages or otherwise that he has not paid wages at less than the prescribed or agreed rate.

Civil
proceedings by
Permanent
Secretary for
payment of
wages at
prescribed rate.
[12 of 1967]

13. Where it appears to the Permanent Secretary, or to any officer appointed under this Part or to any officer of any Government Department for the time being assisting in carrying this Part into effect, that any sum is due by an employer to an employee by reason of the fact that wages have been paid to that employee at less than the prescribed rate applicable, and that it is not possible to recover the sum so appearing to be due, or some part of that sum, by means of proceedings under section 12, the Permanent Secretary, or that officer, if he is authorised in that behalf by special or general directions of the Permanent Secretary, may, if it appears expedient so to do by reason of the refusal or neglect of the employee to take the necessary proceedings, on behalf of and in the name of the employee, institute civil proceedings before any court of competent jurisdiction for the

recovery of the said sum:

Provided always that the court before which any such civil proceedings are instituted by the Permanent Secretary or by any such officer as aforesaid shall have the same power to make an order for the payment of costs by the Permanent Secretary or officer as if the Permanent Secretary or officer were a party to the proceedings.

Appointment
of officers and
power of entry
and inspection.
[12 of 1967
19 of 1977]

14. (1) The Minister may appoint such officers as he may think necessary for the purpose of investigating any complaints and otherwise securing the proper observance of the provisions of this Part.

(2) Any such officer shall have power to enter at any hour of the day or night upon the premises of any employer in an occupation to which a prescribed rate is applicable and to require the production of wages sheets or other record of wages by any such employer and to inspect and examine the same and copy any material part thereof.

(3) If any person on being required to do so by any such officer fails or refuses to produce any wages sheet or other record of wages, that person shall be liable on summary conviction in respect of each offence to a fine of one hundred dollars; and if any person makes or causes to be made or knowingly allows to be made any wages sheet or record of wages or record of payments which is false in any material particular or produces or causes to be produced or knowingly allows to be produced any such sheet or record to any officer acting in exercise of the powers given by this section knowing the same to be false, he shall be liable on summary conviction to a fine of two hundred dollars or to imprisonment for three months.

(4) The Chief Labour Officer, the Deputy Chief Labour Officer and the Assistant Chief Labour Officer shall, without further appointment, be officers for the purposes of

subsection (1).

Agreement in
contravention
of this Part
void.

15. Any agreement for payment of wages in contravention of this Part shall be void.

PART IV RIGHTS OF EMPLOYEES AND DUTIES AND OBLIGATIONS OF EMPLOYERS

Duration and
mode of
determination
of contract.
[20 of 1994
19 of 1997]

16. Every contract shall be terminated by the death of the employee:

Provided that such termination shall be without prejudice to the legal claims of his heirs, dependants or personal representatives.

Rates and
particulars of
wages to be
notified by
employer to
employee.

17. (1) Where an employer offers any work to an employee, he shall inform him, either at the time of the offer or as soon thereafter on the same day as may be practicable, whether he is to be paid for his services by the task or by the day, and at what rate for the task or day, as the case may be.

(2) Upon the payment to an employee of his wages, an employer shall inform the employee of the particulars of such wages in so far as such particulars may be subject to any change.

PART V PAYMENT OF WAGES AND DEDUCTIONS THEREFROM

Contracts to
pay wages
otherwise than
in money
illegal.
[8 of 1960]

18. (1) Except where otherwise permitted by this Part, in every contract for the hiring of any employee or for the performance by any employee of any labour, the wages of such employee shall be payable in money only, and not otherwise, and if in any such contract the whole or any part

of such wages is payable in any manner other than in money, such contract shall be and is hereby declared illegal, null and void.

Wages to be paid entirely in money.

(2) Except where otherwise permitted by this Part, the entire amount of the wages earned by or payable to any employee in respect of any work done by him shall be actually paid to him in money and not otherwise.

(3) Except where there is an agreement to the contrary, wages shall be paid at weekly, fortnightly or monthly intervals as the case may be.

(4) Where the payment of wages is made in money such payment shall be made on working days only, and at or near the work place except where there exist more appropriate arrangements.

Employee's right to recover entire amount of his wages.

19. Every employee shall be entitled to recover from his employer the whole or so much of the wages earned by such employee, exclusive of sums lawfully deducted in accordance with this Part, as shall not have been actually paid to him by his employer in money.

No contract to be made with employee as to spending wages at any particular shop, etc.

20. No employer shall, directly or indirectly, by himself or his agent, impose as a condition, express or implied, in or for the employment of any employee, any terms as to the place at which, or the manner in which, or the person with whom, any wages or portion of wages paid or payable to the employee are or is to be expended, and no employer shall by himself or his agent dismiss any employee from his employment for or on account of the place at which, or the manner in which, or the person with whom, any wages or portion of wages paid or payable by the employer to such employee are or is to be expended or fail or fails to be expended.

Advances of money in

21. (1) Subject to this Part, an employer may make

anticipation of wages. advances of money to his employee in anticipation of the regular period of payment of his wages.

Interest, discount, etc., on advances forbidden. (2) Whenever any advance of money is made by an employer to an employee, it shall not be lawful for the employer to make any deduction in respect of such advance on account of poundage, discount, interest, commission, or any similar charge.

Wages in kind. [20 of 1994] **22.** (1) Subject to subsection (2), in any occupation in which the partial payment of wages in the form of allowances in kind is customary or desirable because of the nature of such occupation, nothing contained in this Part shall render illegal a contract with an employee for giving to him food, drink, a house, cottage, tenement or room, or other allowances or privileges in addition to money wages as a remuneration for his services, the payment of wages in the form of liquor of high alcoholic content or of noxious drugs not being permitted in any circumstances.

(2) No employer shall give to an employee any allowance in kind unless—

- (a) the employee requests such allowance on the basis that it is appropriate for his personal use and benefit or that of his family; and
- (b) the value attributed to such allowance is fair and reasonable and has been agreed upon by the employer and employee.

Deduction from wages which are permitted. **23.** Nothing contained in this Part shall extend, or be construed to extend, to prevent any employer or agent of such employer, from making, or contracting to make, any stoppage or deduction from the wages of any employee for or in respect of—

- (a) any unpaid rent of any land, house, cottage, tenement or room demised or let by the employer to the employee; or
- (b) any grazing fee due by the employee to the employer; or
- (c) any medicine or medical attendance supplied by the employer to the employee at the latter's request; or
- (d) the actual or estimated cost to the employer of any materials, tools and implements supplied by the employer to the employee at the latter's request to be employed by him in his occupation; or
- (e) any victuals supplied by the employer to the employee at the latter's request; or
- (f) the actual or estimated cost to the employer of any goods supplied by the employer to the employee for the personal use of the employee; or
- (g) any money advanced by the employer to the employee (whether paid to the employee himself or to some other person at his request), in anticipation of the regular period of payment of his wages:

Provided that the total amount which may be stopped or deducted from the wages of an employee in any one month

under this paragraph shall not exceed one-third of the wages of the employee in that month.

Penalties.
[4 of 1972
20 of 1994]

24. If any employer or his agent contravenes or fails to comply with any of the provisions of this Part, such employer or agent, as the case may be, shall be liable on summary conviction to a fine of six thousand, two hundred and fifty dollars for the first offence, to a fine of fifteen thousand, six hundred and twenty-five dollars for the second offence, and in case of a third or subsequent offence, to a fine of forty-six thousand, eight hundred and seventy-five dollars.

Procedure for
bringing actual
offender before
court when
employer
charged.

25. (1) Where an employer is charged with an offence against this Part, he shall be entitled, upon information duly laid by him, to have any other person whom he charges as the actual offender brought before the court at the time appointed for hearing the charge, and if, after the commission of the offence has been proved, the employer proves to the satisfaction of the court that he had used due diligence to enforce the execution of this Part, and that the said other person had committed the offence in question without his knowledge, consent or connivance, the said other person shall be summarily convicted of such offence, and shall be liable to the same penalty as that to which the employer, if convicted, would have been liable and the employer shall be exempt from any penalty.

(2) When it is made to appear to the satisfaction of the Permanent Secretary, at the time of discovering the offence, that the employer had used due diligence to enforce the execution of this Part, and also by what person such offence had been committed, and also that it had been committed without the knowledge, consent, or connivance of the employer, then the Permanent Secretary shall proceed against the person whom he believes to be the actual offender in the first instance without first proceeding against the employer.

PART VI
PROHIBITION OF PAYMENT OF WAGES IN RETAIL
SPIRIT SHOPS

Wages not to be paid within retail spirit shop.

26. No wages shall be paid to any employee at or within any retail spirit shop, tavern or place for the sale of any spirits, rum, wine, beer or other spirituous or fermented liquor, or any office, or place belonging thereto or occupied therewith, save and except such wages as are paid by the resident owner or occupier of such retail spirit shop, tavern or place to any employee *bona fide* employed by him.

Offence.
[20 of 1994]

27. Every person who contravenes or fails to comply with or permits any person to contravene or fail to comply with any of the provisions of the preceding section shall be liable on summary conviction to a fine of six thousand, two hundred and fifty dollars for each offence.

PART VII
HOURS OF WORK OF EMPLOYEES

Power to make regulations as to hours of work in any occupation.
[19 of 1990]

28. (1) The Minister may make regulations prescribing the number of hours which may normally be worked by an employee in any week or on any day in any occupation, and the time to be allowed by an employer to his employee for his meals.

(2) In any such regulations the prescribed number of hours may vary —

- (a) in respect of different periods of the year;
- (b) according to the season, where the carrying on of an occupation is

influenced by seasons;

- (c) in respect of different branches or processes of an occupation;
- (d) in respect of adults, children of or under the age of fourteen years, and young persons over the age of fourteen years and under the age of sixteen years; and
- (e) in respect of different parts of Guyana.

c. 91:04 (3) This section shall not apply to a shop assistant as defined in section 2 of the Shops Act.

PART VIIA COLLECTIVE AGREEMENTS

Collective
agreements
enforceable.
[9 of 1984]

28A. (1) Every collective agreement which—

- (a) is made in writing on or after the date on which this section comes into operation; and
- (b) does not contain a provision which (however expressed) states that the agreement or part of it is intended not to be legally enforceable,

shall be conclusively presumed to be intended by the parties to it to be a legally enforceable contract and with effect from the date specified for that purpose in subsection (3) the collective agreement shall, in so far as its provisions are not inconsistent with the other provisions of this Act or the provisions of any other written law, be binding on, and

enforceable by or against, the parties to it and, where any such party is an organisation, all the persons who are members of that organisation on the date on which the collective agreement is made and all those who become members of that organisation after that date.

(2) Where a collective agreement referred to in subsection (1)(a) contains a provision which (however expressed) states that a part of the agreement specified in that provision is intended not to be legally enforceable, the collective agreement with the exception of that part shall be conclusively presumed to have been intended by the parties to it to be a legally enforceable contract and with effect from the date specified for that purpose in subsection (3) the collective agreement, with the exception of that part, shall, in so far as its provisions are not inconsistent with the other provisions of this Act or the provisions of any other written law, be binding on, and enforceable by or against, the parties to it and, where any such party is an organisation, all the persons who are members of that organisation on the date on which the collective agreement is made and all those who become members of that organisation after that date.

(3) The date with effect from which a collective agreement referred to in subsection (1)(a) or part of such collective agreement shall be legally enforceable under subsection (1) or subsection (2), as the case may be, shall be the date specified therefor in the collective agreement or, if no such date is specified, the date on which the collective agreement is signed by all the parties thereto or their representatives or, if the collective agreement is signed by the parties thereto or their representatives on different dates the last of the dates on which any of such parties or their representatives signed the collective agreement.

(4) A copy of every collective agreement referred to in subsection (1)(a) signed by the parties thereto or their representatives shall be presented to the Chief Labour Officer

by all or any of such parties or representatives as soon as may be possible, and in any case not later than three months after it is made and the Chief Labour Officer shall keep it in his office:

Provided that the validity or enforceability of the collective agreement shall not be affected by the non-presentation of the collective agreement to the Chief Labour Officer under this subsection.

(5) Where a copy of a collective agreement is presented to the Chief Labour Officer under subsection (4) by only one or some of the parties thereto or their representatives the Chief Labour officer shall issue notice, in the prescribed form, of the presentation of the collective agreement to the parties who, or whose representatives, did not join in presenting the collective agreement to him.

(6) Where one of the parties to a collective agreement referred to in subsection (1)(a) is a trade union recognised by any employer, who or any organisation of which he is a member is a party thereto, as sole bargaining agent in respect of all his employees or any class of his employees, the collective agreement shall be binding also on, and enforceable also by or against, every one of his employees, or every one of that class of his employees, as the case may be, who are not members of the trade union, to the same extent to which it would have been binding on, or enforceable by or against, those employees if they were members of the trade union.

(7) A member of any organisation which is a party to any collective agreement, a copy of which has been presented to the Chief Labour Officer under subsection (4), shall be entitled to examine it or make extracts from it during the normal working hours of the office of the Chief Labour Officer on any working day and every person on whom the collective agreement is binding shall be entitled to obtain a

copy of it on payment of such fees as may be prescribed by the Minister by regulations.

(8) In this section reference to member of an organisation includes, in the case of an organisation of which any other organisation is a member, reference to every member of that other organisation.

(9) Where a copy of any collective agreement, a copy of which is required by subsection (4) to be presented to the Chief Labour Officer, is not presented to the Chief Labour Officer before the expiry of the period specified therefor by that subsection, each of the persons who signed the collective agreement shall be liable on summary conviction to a fine of five hundred dollars and also to a fine of fifty dollars for every day during which the failure to so present the collective agreement to the Chief Labour Officer continues.

Meaning of
"collective
agreement".
[9 of 1984]

28B. (1) In this Act "collective agreement" means any agreement or arrangement which for the time being is subsisting and—

- (a) is an agreement or arrangement made (in whatever way and in whatever form) by or on behalf of one or more organisations of employees and either one or more employers, one or more organisations of employers, or a combination of one or more employers and one or more organisations of employers; and
- (b) is either an agreement or arrangement prescribing (wholly or in part) the terms and conditions of employment of employees of one or more descriptions, or an agreement or

arrangement relating to one or more of the procedural matters specified in subsection (2), or both.

(2) The procedural matters referred to in subsection (1)(b) are—

- (a) machinery for consultation with regard to, or for the settlement by negotiation or arbitration of, terms and conditions of employment;
- (b) machinery for consultation with regard to, or for the settlement by negotiation or arbitration of, other questions arising between an employer or group of employers and one or more employees or organisations of employees;
- (c) negotiating rights;
- (d) facilities for officials of trade unions or other organisations of employees;
- (e) procedures relating to dismissal;
- (f) procedures relating to matters of discipline other than dismissal;
- (g) procedures relating to grievances of individual employees.

Regulation of terms and conditions of employment of employees in the public sector.

28C. (1) The Trades Union Congress and the Government may, in relation to employees in the public sector generally or in relation to any class of employees in the public sector, make an agreement or arrangement in writing with respect to any of the matters in respect of which a

[9 of 1984] collective agreement may be made.

(2) Any agreement or arrangement made by the Trades Union Congress and the Government under subsection (1) shall, in so far as its provisions are not inconsistent with the other provisions of this Act but notwithstanding anything contained in any other written law or contract or award of any arbitrator or arbitration tribunal, be binding on every employee, in relation to whom the agreement or arrangement is made, and his employer and be enforceable by or against each such employee or his employer, with effect from the date specified for that purpose in the agreement or arrangement or, if no such date is specified, with effect from the date on which the agreement or arrangement is signed by all parties thereto or their representatives or if the agreement or arrangement is signed by the parties thereto or their representatives on different dates, the last of the dates on which any of such parties or representatives signed the agreement or arrangement.

(3) An agreement or arrangement made by the Trades Union Congress and the Government under subsection (1) may contain a provision stating that the agreement or arrangement or part thereof is intended not to be legally enforceable and —

- (a) where the provision states that the whole of the agreement or arrangement is intended not to be legally enforceable, subsection (2) shall not apply to the whole of the agreement or arrangement; and
- (b) where the provision states that part of the agreement or arrangement is intended not to be legally enforceable, subsection (2) shall not apply to that part but shall apply to the remaining

part of the agreement or arrangement.

(4) An agreement or arrangement made under subsection (1) shall be published by the Government in the *Gazette* as soon as may be possible after it is signed by all the parties thereto or their representatives:

Provided that the validity or enforceability of the agreement or arrangement shall not be affected by its non-publication in the *Gazette*.

(5) Where in relation to the same employee a collective agreement to which section 28A applies and an agreement or arrangement made under subsection (1) are in force, and the provisions of the collective agreement in regard to any matter, being provisions which are intended to be legally enforceable, are in conflict with the provisions of the agreement or arrangement made under subsection (1) in regard to that matter, also being provisions which are intended to be legally enforceable, the provisions of the agreement or arrangement made under subsection (1) in regard to that matter shall prevail.

(6) The Trades Union Congress and a public sector employer may, in relation to the employees employed by or in the service of the public sector employer or any class of such employees, make an agreement or arrangement in writing with respect to any of the matters in respect of which a collective agreement may be made and the other provisions of this section, excluding subsection (1), shall *mutatis mutandis* apply to, and in relation to, the agreement or arrangement so arrived at subject to the modification that for every reference therein to an agreement or arrangement made by the Trades Union Congress and the Government under subsection (1) there shall be substituted a reference to the agreement or arrangement made under this subsection.

(7) In this section—

- (a) “award” includes an interim award;
- (b) “employee in the public sector” means an employee employed by or in the service of a public sector employer;
- (c) “public sector employer” means—
 - (i) the Government;
 - (ii) any public corporation, or any other corporate body in which the controlling interest vests in the State or in any agency on behalf of the State.

PART VIII MISCELLANEOUS

Abstracts of
Act and
regulations to
be displayed by
employer.
[39 of 1956]

29. (1) Every employer shall display, or cause to be displayed, and shall keep displayed, at some conspicuous place on his premises, a notice containing such provisions of this Act and of any regulations or orders made thereunder, as may be prescribed by the Minister.

(2) The employer shall at all times keep the notice in such condition and position that it can easily be read by his employees.

(3) If any employer contravenes any of the requirements of this section he shall be liable on summary conviction to a fine of one hundred dollars.

General powers
of designated
officer.
[8 of 1960]

30. (1) Any officer of the Labour Department designated for the purposes of this section by the Minister (in this section referred to as a designated officer) is empowered

12 of 1967
4 of 1972
19 of 1977
20 of 1994]

and authorised —

- (a) whenever he has reasonable cause to believe that labour is employed in any premises, to enter, inspect and examine such premises and every part thereof at any hour of the day or night, and to obtain and to require from any employer information as to the wages, hours and conditions of work of those so employed;
- (b) to take with him a member of the police force if he has reasonable cause to apprehend any serious obstruction in the execution of his duty;
- (c) to carry out any examination, test or enquiry which he may consider necessary in order to satisfy himself that the provisions of any law relating to the employment of persons are being strictly observed and, in particular to—
 - (i) interrogate, alone or in the presence of witnesses, the employer or the staff of the undertaking on any matters concerning the application of any such law or to apply for information to any other person whose evidence he may consider necessary:

Provided that no person shall be required under this subparagraph to answer any

question, or to give any evidence, tending to incriminate himself;

- (ii) require the production of any books, registers or other documents, the keeping of which is prescribed by any law relating to conditions of work, in order to see that they are in conformity with such law and to copy such documents or make extracts from them or remove them to his office;

Provided that notice in writing to produce these books, registers or other documents has been served on the employer at least five days in advance;

- (iii) enforce the posting of notices required by any law; and
 - (iv) take or remove for purposes of analysis samples of materials and substances used or handled, subject to the employer or his representative being notified of any samples or substances taken or removed for this purpose;
- (d) to require from employers generally returns giving information as to the wages, hours and conditions of work of their employees; and

c. 99:06

- (e) to inspect the register of accidents kept in pursuance of section 3 of the Accidents and Occupational Diseases (Notification) Act and to obtain and to require from an employer information as to the causes and circumstances relating to any accident that may have occurred on the employer's premises.

(2) A designated officer shall, when on an inspection visit, notify the employer or his representative of his presence, unless he considers that such notification may be prejudicial to the performance of his duties.

(3) Every employer shall grant to his workers and their representatives every facility for communicating freely with the designated officer when on a visit of inspection.

(4) Any person who without good and sufficient cause—

- (a) fails on application being made to him in writing to furnish to any designated officer any information or any returns specified in subsection (1) or to produce any books, registers or other documents required by a designated officer under and in accordance with subsection (1);
- (b) fails to grant to his workers every facility for communicating freely with any designated officer on a visit of inspection, shall be liable on summary conviction to a fine of thirty-one thousand, two hundred and fifty dollars; and any person who knowingly furnishes or allows to be

furnished to a designated officer or other officer any information, return, book, register or document which is false in any material particular, shall be liable on summary conviction in respect of each offence to a fine of sixty-two thousand, five hundred dollars and to imprisonment for three months.

Certificate of appointment of Senior Labour Officer and Labour Officer.
[8 of 1960]

31. (1) Every Senior Labour Officer or Labour Officer appointed under section 3(1) shall be furnished with a certificate of his appointment in the prescribed form.

(2) When visiting any premises in the execution of his duty under this Act, every Senior Labour Officer and Labour Officer shall, if required so to do, produce the said certificate to the employer or his representative.

Obstruction of officer in execution of duty.

32. Any person who hinders, molests or obstructs any officer in the execution of his duty under this Act shall be liable on summary conviction to a fine of three hundred dollars or to imprisonment for three months.

Offence to reveal information.
[8 of 1960
29 of 1961
12 of 1967]

33. (1) The Chief Labour Officer, Deputy Chief Labour Officer or Assistant Chief Labour Officer and every Senior Labour Officer or Labour Officer shall, even after leaving the public service, maintain secrecy concerning any manufacturing or commercial secrets or working processes which may come to his knowledge in the course of his duties.

(2) Every person who wilfully acts in contravention of this section shall be liable on summary conviction to a fine of four hundred dollars and to imprisonment for six months.

Injunction not to be granted

33A. (1) Notwithstanding anything contained in any other written law, where any matter has been referred for

against
functioning of
arbitration
tribunal.
[9 of 1984]

settlement to the arbitration of an arbitration tribunal under section 4, no court shall make an interlocutory order (whether ex parte or with notice) in any cause or matter pending before it staying, or having the effect of staying, the operation of the reference or granting an injunction prohibiting, or having the effect of prohibiting, the arbitration tribunal from exercising or performing its functions in respect of the matter so referred.

(2) Where before the coming into operation of this section a court has made an interlocutory order granting an injunction prohibiting, or having the effect of prohibiting, any arbitration tribunal, to whom any matter has been referred for settlement under section 4, from exercising or performing its functions and that cause or matter has not been finally determined by the court before the coming into operation of this section, any of the parties to the cause or matter in which the interlocutory order has been made may, within three months of the coming into operation of this section, apply to the court in which the cause or matter is pending requesting the cancellation of the interlocutory order and thereupon the court shall, after giving all the parties concerned a reasonable opportunity of being heard, pass appropriate orders in accordance with the provisions of this section so as to enable the arbitration tribunal to exercise and perform its functions.

(3) The preceding provisions of this section shall not apply to any application properly made under article 153 of the Constitution.

(4) A cause or matter in which the legality or propriety of the reference of any matter for settlement to the arbitration of an arbitration tribunal under section 4 is questioned shall be heard and finally determined by the court in which it is pending, with all convenient speed and all the parties to the cause or matter shall give full cooperation to the court for this purpose.

(5) The provisions of this section shall apply also in relation to any arbitration tribunal to which any matter has been referred under section 4 before the date on which this section comes into operation, if that arbitration tribunal has not, before that date, effected a settlement of the matter referred to it or made its final award in relation to that matter.

(6) In this section “interlocutory order” includes an order granting an interim injunction.

General power
of Minister to
make
regulations.
[9 of 1984]

34. The Minister may make regulations—

- (a) prescribing the form in which the information and the returns in subsection (1) of section 30 shall be furnished;
- (b) prescribing or empowering the Permanent Secretary to approve of the form or manner in which any pay-lists or statistics of earnings of employees and of deductions made therefrom shall be kept by any employer;
- (c) prescribing any other form required for the purposes of this Act, including the form for a notice under section 28A(5);
- (cc) prescribing the fees payable under section 28A(7) for obtaining a copy of a collective agreement; and
- (d) generally for the purposes of this Act.

Penalty for
breach of

35. There may be annexed to the breach of any

regulations.
[20 of 1994]

regulation made under this Act a penalty not exceeding the sum of eighteen thousand, seven hundred and fifty dollars.

Power of
Minister to
make rules.

36. The Minister may make rules—

- (a) regulating the procedure to be followed by Advisory Committees appointed under this Act;
- (b) regulating the amount, and payment, of remuneration, fees, costs and expenses in respect of any inquiry by an Advisory Committee under this Act;
- (c) regulating or prohibiting the publication of reports submitted by Advisory Committees appointed under this Act and the publication of any evidence given before such Committees; and
- (d) generally to give effect to the provisions of this Act relating to the holding of inquiries by Advisory Committees.

Extended
jurisdiction.

37. Any proceeding under this Act may be taken in the magistrate's court of the district in which the contract is made or of the district in which the offence or breach is alleged to have been committed.

Institution of
prosecutions by
Permanent
Secretary.

38. The Permanent Secretary may institute or cause to be instituted any prosecution for the purpose of enforcing any of the provisions of this Act and any officer of the Department of Labour may appear as prosecutor for and on behalf of the Permanent Secretary.

Procedure.

39. All complaints under this Act may be heard and determined and all offences and penalties may be prosecuted and enforced in the manner provided by the Summary Jurisdiction Acts:

c. 10:02

Provided that any order for the payment or recovery of wages or compensation shall be enforceable in the same manner as an order for the payment of compensation under the Summary Jurisdiction (Procedure) Act.

General
penalty.
[20 of 1994]

40. Any person who by any act or omission contravenes or fails to comply with any provision of this Act shall, unless a penalty is otherwise specifically provided, be liable to pay a fine of six thousand, two hundred and fifty dollars.

Expenses of
execution of
Act. How
defrayed.

41. The expenses of the Ministry in the execution of this Act shall be defrayed out of moneys provided by Parliament.

No order for
attachment of
wages of
certain
employees.
[8 of 1960]

42. No order for the attachment of the wages of any servant, labourer or workman shall be made by the High Court or by a magistrate's court.

[Subsidiary]

Labour (Arbitration Procedure) Regulations

SUBSIDIARY LEGISLATION

LABOUR (ARBITRATION PROCEDURE) REGULATIONS

ARRANGEMENT OF REGULATIONS

REGULATION

1. Citation.
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10. Power of tribunal to exclude the public or press from any of its sittings.
11. Power of tribunal to regulate its procedure.

Reg. 19/1950
1/1975

**LABOUR (ARBITRATION PROCEDURE)
REGULATIONS**

made under section 5(2) and 34

Citation. **1.** These Regulations may be cited as the Labour
(Arbitration Procedure) Regulations.

Interpretation. **2.** In these Regulations—
[Reg. 1/1975] “award” means the terms of settlement of any dispute into

which inquiry is being made by a tribunal and includes an interim award made under section 4(4)(b) of the Act;

“Chairman” means any person appointed as Chairman of any tribunal appointed under section 4 (1) (c) of the Act;

“tribunal” means an arbitration tribunal of one or more persons appointed under section 4 (1) (c) of the Act.

Tribunal’s powers to summon and examine witnesses.

3. (1) Any person may, by notice in writing signed by the Chairman or, where the tribunal consists of one person, by such person, be required —

- (a) to attend any meeting of the tribunal and give evidence before the said tribunal; or
- (b) to attend any meeting of the tribunal and produce any document which, in the opinion of the tribunal is relevant to the subject matter of the arbitration; or
- (c) to furnish in such manner as may be specified such particulars as may be required by the tribunal.

(2) Any person who fails to comply with any notice signed by the Chairman or the tribunal under paragraph (1) shall be liable to a fine of one hundred dollars:

Provided always that, if any witness objects to answer any question or to produce any document on the ground that the answer or production will tend to incriminate him or subject him to any penalty, he shall not be required to answer the question or produce the document.

[Subsidiary]

Labour (Arbitration Procedure) Regulations

Effect of
vacancy
occurring in
tribunal.

4. (1) Whenever a tribunal consists of more than one person and any vacancy occurs in their number the tribunal may, with the consent of the parties between whom the dispute exists, act notwithstanding such vacancy.

Division of
opinion of
tribunal.

(2) If the tribunal shall, in any case, be equally divided on any question that arises during proceedings, the chairman shall have a second or casting vote.

Power of
tribunal to call
in aid one or
more assessors.
[Reg. 1/1975]

5. A tribunal may at any time, if it deems it expedient so to do, call in the aid of one or more assessors, specially qualified in the opinion of the tribunal, to give assistance to the tribunal on the matter under inquiry or in any matter relevant to the inquiry or refer any such matter to any person for investigation and report to the tribunal.

Report of
tribunal.

6. (1) Each report by a tribunal shall be in writing and shall be addressed to the Minister.

(2) Such report shall contain a brief account of the proceedings and all the terms of the award.

(3) Such report shall be signed by the members of the tribunal who concur therein and it shall be accompanied by any report signed by any dissenting member of the tribunal.

(4) Such report shall be forwarded to the Minister as soon as possible after the conclusion of the inquiry.

Publication of
award of
tribunal.

7. The Minister shall as soon as possible after the report of a tribunal has been submitted to him cause the award to be published in such manner as he thinks fit.

Tribunal to
decide any
question
arising as to
interpretation

8. If any question arises as to the interpretation of any award of a tribunal, the Minister or any party to the award may apply to the tribunal for a decision on such a question, and the tribunal shall decide the matter after hearing the

of its award. parties or without such hearing provided the consent of the parties has been first obtained. The decision of the tribunal shall be notified to the parties and shall be deemed to form part of and shall have the same effect in all respects as the original award.

Appearance of counsel. 9. The tribunal may in its discretion permit any interested person to appear by counsel at any proceedings before such a tribunal.

Power of tribunal to exclude the public or press from any of its sittings. 10. The tribunal may, in its discretion admit or exclude the public or press from any of its sittings.

Power of tribunal to regulate its procedure. 11. Subject to these Regulations any tribunal may regulate its procedure in such manner as it may deem expedient to enable it to effect a settlement expeditiously.

O. 35/1943

MINIMUM WAGES (GEORGETOWN WATERFRONT WORKERS) ORDER

made under section 8

Citation. 1. This Order may be cited as the Minimum Wages (Georgetown Waterfront Workers) Order, and shall apply to the Port of Georgetown.

Application of order. 2. This order shall apply only to those persons who are employed in loading and discharging vessels engaged in the Demerara River Service and in respect of such loading

[Subsidiary]

Minimum Wages (Georgetown Waterfront Workers) Order

and discharging.

Application of
order.

3. (1) Subject to this clause, the minimum rates of wages to be paid to those persons to whom this order applies in respect of work performed on a weekday shall be as follows:

Minimum rates
of pay.

Class of persons	Minimum daily rate of wages
Dockmen	\$1.08
Truckers	96

(2) Any person to whom this clause applies who is employed during any part of the periods between 7 a.m. and 11 a.m. and midday and 4 p.m. respectively on a weekday shall be entitled to be paid not less than the following amounts:

Class of persons	Minimum amounts
Dockmen	\$0.54
Truckers	48

(3) Any person to whom this clause applies who is required to work on any public holiday or outside the two periods specified in the last preceding paragraph shall be entitled to be paid in respect of such work at not less than the following rates:

Class of persons	Minimum hourly rate
Dockmen	\$0.27
Truckers	24

O. 60/1956;
8/1966A Reg.
1/1982;
81/1986;
48/1988;
57/1989]

MINIMUM WAGES (CINEMA EMPLOYEES) ORDER

made under section 8

Citation.

1. This Order may be cited as the Minimum Wages (Cinema Employees) Order.

Interpretation.
[O. 8/1966A
86/1981]

2. In this Order—

"cashier" means a person employed in a cinema to sell tickets;

"cinema" means any place where exhibitions of a public nature are given of pictures or other optical effects by means of a cinematograph or similar apparatus;

"clerical assistant" means a person wholly or mainly employed in a cinema to assist in correspondence and the keeping of books;

"employee" means any person employed in a cinema;

"general staff" includes ushers, ticket collectors, and janitors employed in a cinema;

"guard" means a person employed by the employer to preserve order or to watch over bicycles or other property of patrons of a cinema;

"normal hours" means the maximum number of hours which may normally be worked by a person employed in a cinema in accordance with, the Hours of Work (Cinema Employees) Regulations;

[Subsidiary]

Minimum Wages (Cinema Employees) Order

"operator" means a person employed in a cinema to operate a projecting machine.

Minimum
wage rate.
Schedule.
[O. 8/1966A;
Reg. 1/1981
O. 86/1981]

3. (1) The minimum rate of wages payable to an employee in any of the categories of work set out in the first column of the Schedule shall be the appropriate rate set out in the second column of that Schedule.

(2) Where any employee is in receipt of a wage higher than that prescribed in the Schedule the employer shall nevertheless continue to pay to such employee wages at such higher rate.

[O. 8/1966A]

4. (1) An employee described in the first column of the Schedule who, at the request of his employer, works in excess of the normal hours shall be paid for every hour or part thereof so worked at one and one-half times the rate at which he would be paid under this Order.

(2) An employee described in the first column of the Schedule who, at the request of his employer, works in excess of the normal hours shall be paid for every hour or part thereof so worked,

at one and one-half times the rate at which he would, but for this Order, have been paid.

(3) An employee described in the first column of the Schedule shall be paid in respect of work on Sundays at the rate of double the hourly rate of pay.

(4) An employee described in the first column of the Schedule shall be paid in respect of work on any public holiday at the rate of one and a half times the hourly rate of pay.

(5) An employee described in the first column of the Schedule

who is in receipt of a wage at a rate higher than that prescribed in the said schedule and who works on a public holiday shall be paid in respect of such work at the rate of double or one and a half times, as the case may be, the higher rate of pay.

Casual
employment in
cinemas.
[O. 8/1966A]

5. Any cinema employee who is employed on a casual basis shall be paid an hourly rate calculated on the basis of the prescribed minimum weekly rate of wages for that category of work divided by the prescribed normal hours for that category together with twenty- five per cent thereof.

O. 24/1961
[37/1964
39/1975
83/1981
32/1987
39/1989,
27/1993
18/2008]

MINIMUM WAGES (SECURITY GUARDS) ORDER

made under section 8

Citation

1. This Order may be cited as the Minimum Wages (Security Guards) Order.

Interpretation.

2. In this Order —

“normal hours” means the maximum number of hours which may normally be worked by a security guard in accordance with the Hours of Work (Security Guards) Regulations;

[Subsidiary]*Minimum Wages (Watchmen) Order*

“security guard” means any person wholly or mainly employed to watch over any specific property:

Provided that employment only to operate or superintend the use of a gate, shall not be deemed to constitute employment to watch over property for the purposes of this definition.

Minimum
wage rates.
[O. 37/1964
39/1975;
83/1981;
18/2008]

3. (1) Subject to this Order, the minimum rate of wages payable to a security guard employed on a weekly, fortnightly or monthly basis shall be four thousand five hundred.

(2) Subject to this Order, the minimum rate of wages payable to a security guard employed otherwise than in paragraph (1) shall be eighty-four dollars per hour or six hundred and seventy-two dollars per day:

Provided that where, upon the commencement of this Order, a security guard is in receipt of a wage at a rate greater than that prescribed by this Order, the employer shall nevertheless continue to pay to the said security guard wages at the higher rate.

Overtime.
[O. 37/1964
39/1975
83/1981]

4. (1) A security guard, employed on a weekly, fortnightly or monthly basis, who in any one week at the request of his employer works in excess of the normal hours shall be entitled to be paid for every hour or part of an hour worked in excess of such normal hours at the rate of one and one half times the rate at which he would be paid under this Order.

(2) A security guard employed otherwise than in paragraph (1) who at the request of his employer works continuously for a period in excess of the normal hours shall be entitled to be paid for every such hour or part of an hour worked in excess of such normal hours at the rate of one and one half times the rate at which he would be paid under this

Order.

Employer to
continue to
pay.
[O. 83/1981
18/2008]

(3) Where immediately before the commencement of this Order, a guard was in receipt of a wage at a rate higher than that prescribed by clause 2 of this Order, the employer shall nevertheless continue to pay the security guard wages at the higher rate.

O. 28/1962
[37/1964
39/1975
83/1991]

MINIMUM WAGES (LAUNDRY EMPLOYEES) ORDER

made under section 8

Citation.

1. This Order may be cited as the Minimum Wages (Laundry Employees) Order.

Interpretation.

2. In this Order —

“employee” means any person employed in a laundry;

“laundry” means any place where persons are employed by way of trade or business or for purposes of gain in washing, ironing, pressing or dry cleaning of clothing, bed-linen or table-linen and on all duties incidental thereto; and also where any such persons are employed on any of the aforementioned duties incidental to any other trade or business;

“normal hours” means the maximum number of hours which may normally be worked by an employee in accordance with the Hours of Work (Laundries) Regulations.

c.98:01

Minimum

3. (1) Subject to this Order, the minimum time rate of

[Subsidiary]

Minimum Wages (Laundry Employees) Order

wage rates.
[O. 37/1964
39/1975]

wage to be paid to an employee shall be as prescribed in the First Schedule.

(2) Subject to this Order, where work is performed on a piece- rate basis, the piece-rate shall be as prescribed in the Second Schedule.

(3) Where at the commencement of this Order any employee is in receipt of a wage or piece-rate higher than that prescribed in this Order, the employer shall nevertheless continue to pay to such employee wages or piece-rates at such higher rate.

Work of a
higher
category.

4. Where an employee habitually performs work in a category the minimum time rate of wage of which is, in accordance with the classification set out in the Schedules, higher than that of the category to which he properly belongs, he shall be paid at such higher rate of wage.

Overtime.
[O. 37/1964
83/1991]

5. (1) An employee described in the first column of the First Schedule or of the Second Schedule who, at the request of his employer, works in excess of the normal hours, shall be paid for every hour or part thereof so worked at one and one-half times the rate at which he would but for this clause be paid.

(2) An employee described in the first column of the First Schedule or of the Second Schedule who at the commencement of this Order is in receipt of a wage at a rate higher than that prescribed in this Order, and who at the request of his employer works in excess of the normal hours, shall be paid for every hour or part thereof so worked at one and one-half times such higher rate.

FIRST SCHEDULE

PART I

<i>Category of work</i>	<i>Minimum Wage</i>	
Male washer	\$3.00	per day
Female clothes boiler and wringer	2.60	do
Female washer and/or starcher	2.08	do
Male ironer	3.36	do
Female ironer	2.40	do
Female shirt ironer	2.40	do
Female shirt ironer and glazer	2.50	do
Boilerman	3.36	do
Male washing machine operator	4.24	do
<i>Assistant Male washing machine operator</i>		
Persons 18 years and over	3.04	do
Person under 18 years	2.15	do
Dry cleaner operator	4.25	do
<i>Assistant dry cleaner operator</i>		
Persons 18 years and over	3.04	do
Person under 18 years	2.15	do
<i>Hot head operator</i>		
Male	3.98	do
Female	3.50	do
<i>Steam press operator</i>		
Male	4.43	do
Female	3.96	do
Maintenance mechanic	4.20	do
Sorter, marker, wrapper	2.16	do
<i>Spotter</i>		
Male	4.12	do
Female	3.83	do

[Subsidiary]

Minimum Wages (Laundry Employees) Order

Dry cleaner (hand)	3.12	do
<i>Delivery boy</i>		
Persons 18 years and over	2.80	do
Persons under 18 years	1.96	
<i>Persons engaged on jobs other than the above-mentioned specific jobs</i>		
Male 18 years and over	2.75	do
Female 18 years and over	2.04	do
Persons under 18 years	1.96	do

PART II

<i>Category of work</i>	<i>Minimum Wage</i>
Reception clerk	\$11-50 per week
<i>Cashier</i>	
Persons 18 years and over	17.80 do
Persons under 18 years	12.50 do
Motor vehicle drivers	18.00 do

SECOND SCHEDULE

<i>Category of work</i>	
Female washer and starcher	6 c. per piece
Female washer	\$3 ¹ / ₂ c. per day
Female starcher	2 ³ / ₄ c. do
Female ironer (drills)	9c. do
Female ironer (woollens)	10 ¹ / ₂ c. do
Female shirt ironer	7 ¹ / ₂ c do
Female shirt ironer and glazer	9c. do
Female shirt glazer (glazed or unglazed stiff shirt dress)	17 ¹ / ₂ c. do

Steam pressman

Trousers	17.80	do
Jackets	12.50	do

O. 32/1966A

MINIMUM WAGES (QUARRY WORKERS) ORDER

made under section 8

Citation.

1. This Order may be cited as the Minimum Wages (Quarry Workers) Order.

Interpretation.

2. In this Order —

“quarry” means any open work, pit or excavation from which stone or rock is obtained by means of cutting, blasting or other methods, by way of trade or for purposes of gain, but shall not include any place where any manufacturing process, other than a process ancillary to the getting, dressing or preparation for sale of stone or rock, is carried on;

“quarry worker” means any person employed to perform manual labour in connection with the operation of a quarry.

Minimum
wage rates.
First Schedule.

3. (1) Subject to paragraph (2), the minimum rate of wages payable to a quarry worker in any of the categories specified in the first column of the First Schedule shall be the appropriate rate specified in the second column of the said Schedule.

[Subsidiary]

Minimum Wages (Quarry Workers) Order

(2) Where work is performed on a piece-rate basis, the wages payable to a quarry worker in any of the categories specified in the first column of the Second Schedule shall be the appropriate rate specified in the second column of the said Schedule.

Wages higher
than minimum
wage rates

4. Where at the commencement of this Order, a quarry worker is in receipt of a wage at a rate higher than that prescribed in this Order; the employer shall nevertheless continue to pay to that worker wages at the higher rate.

Sledger
Workers.
Second
Schedule,

5. A sledger shall be paid at the appropriate rate specified in the Second Schedule, in respect of the amount of stone handled or collected by him during his hours of work, notwithstanding that no stone handled or collected by him was, as a result of blasting operations, required to be carved by him so as to fulfil any particular dimensions.

FIRST SCHEDULE

Category of Worker.	Minimum Rate of Wages.
Blaster-Foreman ...	\$55.00 per week or \$9.17 per day
Blaster	\$41.25 per week or \$6.70 per day
Blacksmith	\$34.37 per week or \$5.73 per day
Assistant Blacksmith	\$24.75 per week or \$4.12 per day
Jack-Hammer Operator	
Mechanical Operator	
Tractor Operator	
Truck driver	\$30.94 per week or \$5.16 per day
General Labourer hour	\$3.52 per day or 44 cents per hour

SECOND SCHEDULE

Jack Hammer Operator	.07 cents per ft.
	{ Granite – 45.9 cents per ft
	{ per pair
Hand Driller	{ Gabbro – 66 cents per ft per
	{ pair
	{ Fines- under 6 inches
	{ 69. 3 cents per ton.
Sledger	{ Boulders- over 6 inches
	{ 49.5 cents per ton
	{ On vehicles- 35.2 cents per
	{ ton
Loader	{ On craft- 44 cent per ton
	{ Cleanings-44 cents per ton

O. 95/1977
[46/1988
12/1994
13/1996
23/1997
18/1999
34/2002
40/2005
19/2008]

MINIMUM WAGES (EMPLOYEES AT PETROL
FILLING STATIONS) ORDER

made under section 8

Citation.

1. This Order may be cited as the Minimum Wages
(Employees at Petrol Filling Stations) Order.

Interpretation.

2. In this Order –

[Subsidiary]

Minimum Wages (Employees at Petrol Filling Station) Order

“employee” means any person employed at a petrol filling station;

“normal hours” means the maximum number of hours which may normally be worked by an employee in accordance with the Hours of Work (Employees at Petrol Filling Stations) Regulations;

c.80:01

“petrol filling station” means any place or premises in respect of which a licence is required to be taken out under section 61 of the Tax Act and includes any such place or premises where petroleum, and lubricants and accessories required for the repair of, or use in motor vehicles are sold, or any such place or premises where motor vehicles are kept temporarily for the purpose of being cleaned or washed or for the purpose of carrying out running repairs or, making minor adjustments, to them.

Minimum
wage rate.
Schedule.

3. (1) Subject to this Order, the minimum rate of wages payable to an employee in any of the categories of work set out in the first column of the Schedule shall be the rate set out in relation thereto in the second column of that Schedule.

(2) Where an employee is in receipt of a wage higher than that prescribed by this Order, the employer shall nevertheless continue to pay to such employee wages at such higher rate.

(3) The minimum rate of wages payable to an employee who is employed in any categories of work mentioned in the Schedule for any shorter period of time than the appropriate period mentioned in the Schedule shall be the minimum rate of wages prescribed in relation thereto in respect of the last mentioned period:

Provided that an employer may pay to an employee who

is employed in any of the categories of work mentioned in the Schedule less than the minimum rate of wages per week prescribed in relation thereto in respect of any period of time less than the appropriate period mentioned in the said Schedule so that, however such lesser rate per day payable to a person so employed shall not be less than the prescribed minimum rate divided by six, together with twenty five per cent of such lesser rate.

(4) The minimum rate wages payable to an employee employed during any period of time mentioned in the Schedule in more than one category of work mentioned in the Schedule in respect of which different minimum rates of wages are prescribed, shall be the higher or the highest of such rates as the case may be.

Overtime.

4. (1) An employee described in the first column of the Schedule, who at the request of his employer, works in excess of the normal hours shall be paid for every hour or part thereof so worked, at one and one-half times the rate at which he would but for this paragraph, be paid under this Order.

(2) An employee described in the first column of the Schedule who is in receipt of a wage at a rate higher than that prescribed in this Order, and who at the request of his employer, works in excess of the normal hours shall be paid for every hour or part thereof so worked, at one and one half time such higher rate.

(3) An employee described in the first column of the Schedule shall be paid in respect of work on Sunday, Christmas day, the day after Christmas Day if Christmas falls on Sunday Eid-ul-Ahza Day, or, if that day is on a Sunday, the following day Good Friday, Easter Monday, Labour Day, that is to say the 1st May or if that day is a Sunday, the following day, Phagwah Day or if that day is a Sunday, the

[Subsidiary]

Minimum Wages (Employees at Petrol Filling Station) Order

following day at the rate of double the hourly rate.

(4) An employee described in the first column of the Schedule shall be paid in respect of work on any public holiday other than as specified in paragraph (3), at the rate of one and one-half times the hourly rate.

(5) An employee described in the first column of the Schedule who is in receipt of a wage at a rate higher than that described in the said Schedule and who works on any of the days specified in paragraphs (3) and (4) shall be paid in respect of such work at the rate of double or one and one-half times, as the case may be, the higher rate of pay

Termination of
employment
and re-
employment
prohibited

5. An employer who terminates the employment of an employee and re-employs him solely or mainly for the purpose of avoiding the obligations imposed on him by clause 3 (2) or 4 (5) shall be liable on summary conviction to a fine of two hundred and fifty dollars.

[O. 95/1997
46/1988
12/1994
13/1996;
23/1997;
18/1999
34/3002;
40/2005;
19/2008]

SCHEDULE

Category of Employees	Minimum Wage
Supervisor	\$9,500.00 per week
Shift Operator	\$8,400.00 per week
Attendant	\$4,800.00 per week
Serviceman	\$8,500.00 per week
Mechanic	\$8,500.00 per week
Washman	\$5,000.00 per week
Clerk	\$6,000.00 per week

O. 14 of 1996

MINIMUM WAGES (MECHANICAL TRANSPORT EMPLOYEES) ORDER

made under section 9A

Citation.

1. This Order may be cited as the Minimum Wages (Mechanical Transport Employees) Order.

Interpretation.

2. In this Order —

“conductor” means any person employed to carry out the duties of a conductor of a motor bus and who is the holder of a conductor’s licence granted in accordance with regulations 31 and 32 of the Motor Vehicles and Road Traffic Regulations;

“employee” means any person employed to drive a mechanical transport as defined in the Hours of Work (Mechanical Transport Employee) Regulations or any conductor;

“normal hours” means the number of hours which may normally be worked by an employee in accordance with the Hours of Work (Mechanical Transport Employees) Regulations.

Minimum
wage rates
Schedule.

3. (1) The minimum rate of wages payable to an employee in any of the categories of work set out in the first column of the Schedule shall be the appropriate rate set out in the second column of that Schedule.

(2) Where at the commencement of this Order any employee is in receipt of a rate of wages higher than that prescribed in the Order, the employer shall nevertheless continue to pay such employee wages at the higher rate.

O. 14 of 1996

MINIMUM WAGES (MECHANICAL TRANSPORT EMPLOYEES) ORDER

made under section 9A

Citation.

1. This Order may be cited as the Minimum Wages (Mechanical Transport Employees) Order.

Interpretation.

2. In this Order —

“conductor” means any person employed to carry out the duties of a conductor of a motor bus and who is the holder of a conductor’s licence granted in accordance with regulations 31 and 32 of the Motor Vehicles and Road Traffic Regulations;

“employee” means any person employed to drive a mechanical transport as defined in the Hours of Work (Mechanical Transport Employee) Regulations or any conductor;

“normal hours” means the number of hours which may normally be worked by an employee in accordance with the Hours of Work (Mechanical Transport Employees) Regulations.

Minimum
wage rates
Schedule.

3. (1) The minimum rate of wages payable to an employee in any of the categories of work set out in the first column of the Schedule shall be the appropriate rate set out in the second column of that Schedule.

(2) Where at the commencement of this Order any employee is in receipt of a rate of wages higher than that prescribed in the Order, the employer shall nevertheless continue to pay such employee wages at the higher rate.

[Subsidiary]*Minimum Wages (Mechanical Transport Employees) Order*

(3) The minimum rate of wages payable to an employee for any shorter period of time than that set out in the Schedule shall be the minimum rate of wages set out in the Schedule.

Overtime.

4. (1) An employee who at the request of his employer work in excess of the normal hours, shall be paid for every hour or part thereof so worked at one and one-half times the rate at which he would be paid under this Order.

(2) An employee who at the commencement of this Order is in receipt of a wage at a rate higher than that prescribed in this Order, and who at the request of his employer works in excess of normal hours, shall be paid for every hour or part thereof so worked at one and one-half times such higher rate.

Revocation.

5. The Minimum Wages (Hire Car and Motor Bus Employees) Order is hereby revoked.

SCHEDULE

Category of Employee	Minimum Rate of Wages
Driver	\$3,313.00 per week
Conductor	\$1,666.00 per week

[Subsidiary]

Minimum Wages (Mechanical Transport Employees) Order

(3) The minimum rate of wages payable to an employee for any shorter period of time than that set out in the Schedule shall be the minimum rate of wages set out in the Schedule.

Overtime.

4. (1) An employee who at the request of his employer work in excess of the normal hours, shall be paid for every hour or part thereof so worked at one and one-half times the rate at which he would be paid under this Order.

(2) An employee who at the commencement of this Order is in receipt of a wage at a rate higher than that prescribed in this Order, and who at the request of his employer works in excess of normal hours, shall be paid for every hour or part thereof so worked at one and one-half times such higher rate.

Revocation.

5. The Minimum Wages (Hire Car and Motor Bus Employees) Order is hereby revoked.

SCHEDULE

Category of Employee	Minimum Rate of Wages
Driver	\$3,313.00 per week
Conductor	\$1,666.00 per week

O. 93/1960
20/1961
31/1962
49/1987
58/1989
14/1994
11/1996
15/1997
21/1999
40/2000
37/2002]

MINIMUM WAGES (SHIRT AND GARMENT WORKERS) ORDER

made under section 8 (1)

Citation.

1. This Order may be cited as the Minimum Wages (Shirt and Garment Workers) Order.

Interpretation.

[O. 20/1961

O. 31/1962]

2. In this Order —

“assorter” means a worker who sorts, assembles and

distributes the various cut parts of a garment;

“examiner” means a worker who examines the garments for soils and for defects in stitching and materials;

“layer” means a worker who lays or spreads the cloth and other material preparatory to its being cut;

“machinist” means a worker who operates a sewing machine and who has had three or more months of such experience in a shirt or garment factory;

“semi-skilled workers” shall include junior workers, turners, clippers, markers, notchers, edgers, box staplers, creasers and packers employed in a shirt or garment factory;

“stoppage of work” means any cessation of work at a shirt or garment factory occasioned by shortage of materials, breakdown of mechanical plant or equipment, or failure of power supply where the source of the power supply is owned or operated by the occupier of a shirt or

[Subsidiary]

Minimum Wages (Shirt and Garment Workers) Order

garment factory or where the cessation of work occasioned by a strike or lockout arising out of an industrial or trade dispute;

“trainee machinist” means a worker who operates a sewing machine and who has had less than 3 months of such experience in a shirt or garment factory;

“worker” means a person employed in a shirt or garment factory but does not include a person employed in an establishment whose business is wholly or mainly retail bespoke tailoring or dressmaking.

Minimum
wage rates.
Schedule.

3. Subject to this Order, the minimum rate of wage at which a worker mentioned in the first column of the Schedule shall be paid the appropriate rate set out in the second column of the said Schedule:

Provided that where, upon the commencement of this Order, a worker is in receipt of a wage at a rate greater than that prescribed in this Order the employer shall nevertheless continue to pay to the said worker wages at the higher rate.

Work of a
higher
category.

4. Where a worker habitually performs work in a category higher than the category to which he properly belongs in accordance with the classification set out in the Schedule he shall be paid at the rate of wage payable in respect of the higher category as prescribed in the Schedule.

Remuneration
based on work
done.

5. Notwithstanding this Order, an employer shall be entitled to remunerate a worker for his services on the basis of the quantity of work done by such worker during any given period or otherwise:

Provided that, without prejudice to the right of the worker to be paid at a higher rate, in no case shall a worker be paid an amount less than the daily or weekly wage, as the

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Cap. 98:01

Labour

[Subsidiary]

Minimum Wages (Shirt and Garment Workers) Order

case may be, prescribed by this Order in respect of persons belonging to the category in which such worker is employed.

Work not
available due.

6. A worker who on any day, at the request of his employer, reports for duty at a shirt or garment factory and who fails to obtain work during the whole or a part of such day on account of the shortage of materials or stoppage of work factory, shall nevertheless be entitled to the payment of wages in accordance with the appropriate category of worker to which he belongs in respect of the whole of such day.

[O. 49/1987
58/1989
14/1994
11/1996
15/1997
21/1999
40/2000
37/2002]

SCHEDULE

Category of employee	Minimum Wage
Supervisor	\$6,806.00 per week
Tailor	\$5,719.00 per week
cutter	\$5,099.00 per week
Assistant cutter	\$4,650.00 per week
Assorter	\$4,650.00 per week
Examiner	\$4,045.00 per week
Layer	\$3,675.00 per week
Pressers and Finishers	\$ 613.00 per week
Machinists	\$ 613.00 per week
Semi-skilled workers	\$ 613.00 per week
Trainee machinist	\$ 604.00 per week

[Subsidiary]

Minimum Wages (Employees in Groceries) Order

[O. 3/1966A
O. 8/1984
43/1987
52/1989
24/1993
16/1996
21/1997
23/1999
38/2000
39/2002
38/2005
15/2008]

MINIMUM WAGES (EMPLOYEES IN GROCERIES) ORDER

made under section 9A

Citation.

1. This Order may be cited as the Minimum Wages
(Employees in Groceries) Order.

Interpretation.

2. In this Order—

“clerk” includes a salesman, counter assistant, customs clerk,
cashier, and a person employed to assist in
correspondence and book-keeping;

“grocery” means any place or premises used solely or mainly
for the sale of groceries either by way of wholesale or
retail trade;

“messenger” means a person employed to receive and
deliver messages and undertake portering duties, and
shall include a delivery boy;

“porter” means a person who is wholly or mainly
employed for portering duties;

“portering duties” includes carrying goods or supplies, taking
messages, and cleaning premises, furniture or fittings
(including the cleaning of windows).

3. (1) Subject to this Order, the minimum rate of
wages payable to a person employed in a grocery in any of
the categories of work set out in the first column of the
Schedule shall be the appropriate rate prescribed in the

second column of the Schedule.

(2) The minimum rate of wages payable to a person employed in a grocery during any period of time mentioned in the Schedule in more than one category of work mentioned in the Schedule in respect of which different minimum rates of wages are prescribed, shall be the higher or the highest of such rates, as the case may be.

(3) The minimum rate of wages payable to a person employed in a grocery in any of the categories of work mentioned in the Schedule for any shorter period of time than the appropriate period mentioned in the Schedule shall be the appropriate minimum rate of wages prescribed in respect of the last-mentioned period:

Provided that an employer may pay to a person employed in any of the categories of work referred to in the Schedule less than the appropriate minimum rate of wages per week prescribed aforesaid in respect of any period of time less than the appropriate period mentioned in the Schedule so that, however, such lesser rate per day payable to a person so employed shall not be less than the appropriate minimum rate divided by six, together with twenty five per cent of such lesser rate.

4. Deleted by 8/1984.

Wages higher
than minimum
wage rates.

5. Where a person employed in a grocery in any of the categories of work mentioned in the Schedule is, at the commencement of this Order, in receipt of a rate of wage higher than that prescribed by this Order, the employer of that person shall nevertheless continue to pay him wages at the higher rate.

[Subsidiary]

Minimum Wages (Employees in Groceries) Order

[O. 15/2008]

SCHEDULE

Category of Employee	Minimum Rate of Wages
Checker	\$4,500.00 per week
Clerk	\$4,500.00 per week
Cashier	\$5,000.00 per week
Messenger	\$4,500.00 per week
Porter	\$4,500.00 per week
Other unskilled employees	\$4,500.00 per week

O. 4/1966A
 [O. 7/1984
 42/1987
 54/1989
 25/1993
 8/1996
 18/1997
 22/2999
 41/2000
 38/2002
 37/2005
 14/2008]

MINIMUM WAGES (EMPLOYEES IN HARDWARE STORES) ORDER

made under section 8

Citation.

1. This Order may be cited as the Minimum Wages (Employees in Hardware Stores) Order.

Interpretation.

2. In this Order—

“clerk” includes a salesman, counter assistant, customs clerk, cashier, and a person employed to assist in correspondence and book-keeping;

“hardware store” means any place or premises used solely or mainly for the sale of furniture or ironmongery either by way of wholesale or retail trade;

“messenger” means a person employed to receive and deliver messages and undertake portering duties, and shall include a delivery boy;

“porter” means a person who is wholly or mainly employed for portering duties;

“portering duties” includes carry goods or supplies, taking messages, and cleaning premises, furniture or fittings (including the cleaning of windows).

Minimum
wage rates.
Schedule.

3. (1) Subject to this Order, the minimum rate of wages payable to a person employed in a hardware store in any of the categories of work set out in the first column of the Schedule shall be the appropriate rate prescribed in the second column of the Schedule.

(2) The minimum rate of wages payable to a person employed in a hardware store during any period of time mentioned in the Schedule in more than one category of work mentioned in the Schedule in respect of which different minimum rates of wages are prescribed, shall be the higher or the highest of such rates, as the case may be.

(3) The minimum rate of wages payable to a person employed in a hardware store in any of the categories of work mentioned in the Schedule for any shorter period of time than the appropriate period mentioned in the Schedule shall be the appropriate minimum rate of wages prescribed in respect of the last mentioned period:

Provided that an employer may pay to a person employed in any of the categories of work referred to in the Schedule less than the appropriate minimum rate of wages per week prescribed aforesaid in respect of any period of time less than the appropriate period mentioned in the Schedule so that, however, such lesser rate per day payable to a person so

[Subsidiary]

Minimum Wages (Employees in Hardware Stores) Order

employed shall not be less than the appropriate minimum rate divided by six, together with twenty-five per cent of such lesser rate.

Wages higher than minimum wage rates.

5. Where a person employed in a hardware store in any of the categories of work mentioned in the Second Schedule is, at the commencement of this Order, in receipt of a rate of wage higher than that prescribed by this Order, the employer of that person shall nevertheless continue to pay him wages at a higher rate.

SCHEDULE

Category of Employee	Minimum Rate of Wages
Checker	\$4,500.00 per week
Clerk	\$4,500.00 per week
Cashier	\$5,000.00 per week
Messenger	\$4,500.00 per week
Porter	\$4,500.00 per week
Other unskilled employees	\$4,500.00 per week
Registered Student Trainee	\$23,000.00 per month on first appointment
	\$25,000.00 per month after one year

O. 6/1966A
[O. 5/1984
40/1987
53/1989
29/1993
10/1996
17/1997
24/1999
43/2000
40/2002
35/2005
12/2008]

MINIMUM WAGES (EMPLOYEES IN DRY GOODS STORES) ORDER

made under section 9A

Citation.

1. This Order may be cited as the Minimum Wages (Employees in Dry Goods Stores) Order.

2. In this Order—

Interpretation.

“clerk” includes a salesman, counter assistant, customs clerk, cashier, and a person employed to assist in correspondence and book-keeping;

“dry goods store” means any place or premises used solely or mainly for the sale of dry goods either by way of wholesale or retail trade;

“messenger” means a person employed to receive and deliver messages and undertake portering duties, and shall include a delivery boy;

“porter” means a person who is wholly or mainly employed for portering duties;

“portering duties” includes carrying goods or supplies, taking messages, and cleaning premises, furniture or fittings (including the cleaning of windows).

Minimum

3. (1) Subject to this Order, the minimum rate of

[Subsidiary]

Minimum Wages (Employees in a Dry Goods Stores) Order

wage rates.
Schedule

wages payable to a person employed in a dry goods store in any of the categories of work set out in the first column of the Schedule shall be the appropriate rate prescribed in the second column of the Schedule.

(2) The minimum rate of wages payable to a person employed in a dry goods store during any period of time mentioned in the Schedule in more than one category of work mentioned in the Schedule in respect of which different minimum rates of wages are prescribed, shall be the higher or the highest of such rates, as the case may be.

(3) The minimum rate of wages payable to a person employed in a dry goods store in any of the categories of work mentioned in the Schedule for any shorter period of time than the appropriate period mentioned in the Schedule shall be the appropriate minimum rate of wages prescribed in respect of the last-mentioned period:

Provided that an employer may pay to a person employed in any of the categories of work referred to in the Schedule less than the appropriate minimum rate of wages per week prescribed aforesaid in respect of any period of time less than the appropriate period mentioned the Schedule so that, however, such lesser rate per day payable to a person so employed shall not be less than the appropriate minimum rate divided by six, together with twenty-five per cent of such lesser rate.

4. Deleted by 5/1984.

Wages higher
than minimum
wage rates.

5. Where a person employed in a dry goods store in any of the categories of work mentioned in the Schedule is, at the commencement of this Order, in receipt of a rate of wage higher than that prescribed by this Order, the employer of that person shall nevertheless continue to pay him wages at a higher rate.

[Subsidiary]

Minimum Wages (Employees in a Dry Goods Stores) Order

[O. 12/2008]

SCHEDULE

Category of Employee	Minimum Rate of Wages
Cashier	\$5,000.00 per week
Driver	\$4,500.00 per week
Clerk	\$4,500.00 per week
Messenger	\$4,500.00 per week
Porter	\$4,500.00 per week
Other unskilled employees	\$4,500.00 per week

O. 5/1966A

[O. 6/1984

4/1987

60/1989

28/1993

12/1996

16/1997

25/1999

42/2000

4/2002

36/2005

13/2008]

**MINIMUM WAGES (EMPLOYEES IN DRUG
STORES) ORDER**

made under section 9A

Citation.

1. This Order may be cited as the Minimum Wages
(Employees in Drug Stores) Order.

Interpretation.

2. In this Order—

“clerk” includes a salesman, counter assistant, customs clerk,
cashier, and a person employed to assist in
correspondence and book-keeping;

[Subsidiary]

Minimum Wages (Employee in Drug Store) Order

“drug store” means any place or premises in respect of which a licence is required to be taken out under section 24 or 25 of the Tax Act;

“messenger” means a person employed to receive and deliver messages and undertake portering duties, and shall include a delivery boy;

“porter” means a person who is wholly or mainly employed for portering duties;

“portering duties” includes carry goods or supplies, taking messages, and cleaning premises, furniture or fittings (including the cleaning of windows);

“registered student” means any person registered as a student in Pharmacy under any law for the time being in force.

Minimum
wage rates.
Schedule.

3. (1) Subject to this Order, the minimum rate of wages payable to a person employed in a drug store in any of the categories of work set out in the first column of the Schedule shall be the appropriate rate prescribed in the second column of the Schedule.

(2) The minimum rate of wages payable to a person employed in a drug store during any period of time mentioned in the Schedule in more than one category of work mentioned in the Schedule in respect of which different minimum rates of wages are prescribed, shall be the higher or the highest of such rates, as the case may be.

(3) The minimum rate of wages payable to a person employed in a drug store in any of the categories of work mentioned in the Schedule for any shorter period of time than the appropriate period mentioned in the Schedule shall be the appropriate minimum rate of wages prescribed in respect of the last-mentioned period:

Provided that an employer may pay to a person employed in any of the categories of work referred to in the Schedule less than the appropriate minimum rate of wages per week prescribed aforesaid in respect of any period of time less than the appropriate period mentioned in the Schedule so that, however, such lesser rate per day payable to a person so employed shall not be less than the appropriate minimum rate divided by six, together with twenty-five per cent of such lesser rate.

4. Deleted by 6/1984.

Wages higher
than minimum
wage rates.

5. Where a person employed in a drug store in any of the categories of work mentioned in the Schedule is, at the commencement of this Order, in receipt of a rate of wage higher than that prescribed by this Order, the employer of that person shall nevertheless continue to pay him wages at a higher rate.

[O. 13/2008]

SCHEDULE

Category of Employee	Minimum Rate of Wages
Checker	\$4,500.00 per week
Clerk	\$4,500.00 per week
Cashier	\$5,000.00 per week
Messenger	\$4,500.00 per week
Porter	\$4,500.00 per week
Other unskilled employees	\$4,500.00 per week
Registered Student Trainee	\$23,000.00 per month on first appointment \$25,000.00 per month after one year

[Subsidiary]*Minimum Wages (Employee in Drug Store) Order*

Reg. 4/1942

HOURS OF WORK (GEORGETOWN WATERFRONT WORKERS) REGULATIONS

made under sections 28 and 34

Citation.

1. These Regulations may be cited as the Hours of Work (Georgetown Waterfront Workers) Regulations, and shall apply to the City of Georgetown and to the Harbour of Georgetown, as defined in section 2 of the Transport and Harbours Act.

c.49:04

Interpretation.

2. In these Regulations "waterfront worker" means any casual manual worker employed in the loading or unloading of any ship, whether such employment be on shore or on board such, or any other, ship or craft and includes winchmen, dockmen, loading hands, stevedores, sugar packers, slingmen and truckers.

Normal hours
of work.
c.19:07

3. Subject to the Public Holidays Act, the normal daily working hours for waterfront workers shall be from 7 a.m. to 11 a.m. and from 12 noon to 4 p.m.

Reg. 4/1942

HOURS OF WORK (HIRE CAR CHAUFFEURS) REGULATIONS

made under sections 28

Citation.

[Reg. 20/1956]

1. These Regulations may be cited as the Hours of Work (Hire Car Chauffeurs) Regulations.

Interpretation.

2. In these Regulations—

“chauffeur” means a person employed to drive a hire car;

“Chief Labour Officer” includes the Deputy Chief Labour Officer, the Assistant Chief Labour Officer, any Senior Labour Officer and any Labour Officer;

Normal and maximum hours of work.

3. (1) The number of hours which may normally be worked by chauffeur in any week shall not exceed fifty-six.

(2) Every hour or part thereof worked by a chauffeur in excess of the normal hours shall constitute overtime.

(3) The maximum number of hours which may be worked by a chauffeur in any week shall be seventy.

Register of hours of work. Schedule.

4. (1) Each employer shall keep a register (hereinafter referred to as “the Register”) in the form set out in the Schedule.

(2) The Register shall be kept on the premises and shall be produced on request for inspection by the Chief Labour Officer.

(3) The Register shall be kept up to date.

[Subsidiary]*Hours of Work (Hire Car Chauffeurs) Regulations*

(4) The Chief Labour Officer may make copies of any entries in the Register and may, if he so thinks fit, remove the Register to the Department of Labour.

Meal times.
[Reg. 20/1956]

5. Every chauffeur shall be entitled on any day he works to an interval of not less than one and one quarter hours for a meal, commencing not earlier than 10:30 o'clock in the morning and not later than 1.00 o'clock in the afternoon; and when his duties require him to work beyond 6.00 o'clock in the evening, to an interval of one and one quarter hours for a meal between the hours of 6.00 o'clock and 8.15 o'clock in the evening.

Regulations to
be posted on
premises.

6. It shall be the duty of the employer to keep posted up in a conspicuous place on the premises one or more copies of these Regulations.

Penalties.

7. Any person who commits a breach of these Regulations shall be liable to a fine of one hundred dollars.

reg. 4

SCHEDULE

THE REGISTER OF HOURS OF WORK OF EMPLOYEES

Week ending

(1)	(2)	Names of Employees	day	Total hours worked		
				Meal Breaks	a.m. p.m	
				Finish		
				Start		
			day	Total hours worked		
				Meal Breaks	a.m. p.m	
				Finish		
				Start		
		Rate				

[Subsidiary] Hours of Work (Hire Car Chauffeurs) Regulations

(3)

.....day	Total hours worked	
	Meal Breaks a.m. p.m.	
	Finish	
	Start	
	Total hours worked	
	Meal Breaks a.m. p.m.	
	Finish	
	Start	
	Total hours worked	
	Meal Breaks a.m. p.m.	
	Finish	
	Start	
.....day	Total hours worked	
	Meal Breaks a.m. p.m.	
	Finish	
	Start	
	Total hours worked	
	Meal Breaks a.m. p.m.	
	Finish	
	Start	
	Total hours worked	
	Meal Breaks a.m. p.m.	
	Finish	
	Start	

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[Subsidiary]

Hours of Work (Hire Car Chauffeurs) Regulations

(4)	Total hours worked weekly	
(5)	Overtime hours worked weekly i.e. total in col.(4) less 56 hours	
(6)	Ordinary time wages.	
(7)	Overtime wages.	
(8)	Gross wages	
(9)	Deductions	
(10)	Net Wages	
(11)	Received the amount due (signature of employee and date)	

[Subsidiary]

Labour (Prescribed Forms) Regulations

Reg. 13/1975

LABOUR (PRESCRIBED FORMS) REGULATIONS

made under section 34

Citation.

1. These Regulations may be cited as the Labour (Prescribed Forms) Regulations.

Certificate of appointment. Schedule.

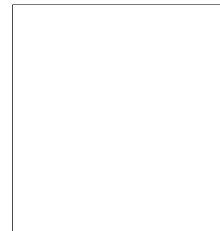
2. The certificate of appointment of every Senior Labour Officer and every Labour Officer referred to in section 31 of the Act shall be in the Form prescribed in the Schedule.

reg. 2

SCHEDULE

FORM

No. This is to certify that
MINISTRY OF LABOUR
Georgetown, Guyana
Cde.....
whose photograph appears
herein has been appointed
Labour act under section 3(1) of the Labour
(Secs. 3(1) and 31) Act as a Senior Labour Officer



CERTIFICATE OF APPOINTMENT
OF SENIOR LABOUR OFFICER

.....
Minister

This Certificate is the
Property of the
Government of Guyana

Date of Issue

*Specimen Signature of
Senior Labour Officer.*

.....

Reg. 9/1953
8/1954
17/1956
1/1966A
24/1981
1/1982]

HOURS OF WORK (CINEMA EMPLOYEES) REGULATIONS

made under section 28

Citation
[Reg. 17/1956
1/1966A]

1. These Regulations may be cited as the Hours of Work (Cinema Employees) Regulations.

Interpretation.
[Reg. 17/1956;
1/1966A;
1/1981;
24/1981]

2. In these Regulations—

“cashier” means a person employed in a cinema to sell tickets;

“cinema” means any place where exhibitions of a public nature are given of pictures or other optical effects by means of a cinematograph or similar apparatus;

“the Chief Labour Officer” includes the Deputy Chief Labour Officer, the Assistant Chief Labour Officer, any Senior Labour Officer and any Labour Officer;

“clerical assistant” means a person wholly or mainly employed in a cinema to assist in correspondence and the keeping of books;

“employee” means any person employed in a cinema;

“general staff: includes ushers, ticket collectors and janitors employed in a cinema;

“guard” means a person employed by the employer to preserve order or to watch over bicycles or other property of the patrons of the cinema;

“operator” means a person employed in a cinema to operate a projecting machine.

[Subsidiary]

Hours of Work (Cinema Employees) Regulations

Normal hours
of works.
Schedule

3. The number of hours which may normally be worked by an employee shall be as set out in the First Schedule.

Overtime.

4. Every hour or part thereof worked by an employee in excess of the normal hours, shall constitute overtime.

Maximum
hours.

5. Except as otherwise provided in these Regulations no person shall be employed in a cinema for more than sixty hours in any one week.

Register of
hours of work
Second
Schedule

6. (1) Each employer shall keep a register (hereinafter referred to as "the Register") in the form set out in the Second Schedule.

(2) The Register shall be kept on the premises and shall be produced on request for inspection by the Chief Labour Officer.

(3) The Register shall be kept up to date.

(4) The Chief Labour Officer may make copies of any entries in the Register and may, if he so thinks fit, remove the Register to the Department of Labour.

Meal times.

7. Every employee shall be entitled on any day on which he works, to an interval of not less than one and one quarter hours for a meal between the hours of 10.30 o'clock in the morning, and 1.15 o'clock in the afternoon; and, when his duties require him to work beyond six o'clock in the evening, to an interval of one and one quarter hours for a meal between the hours of 6.00 o'clock and 8.15 o'clock in the evening.

8. Deleted by 24/1981.

Regulations to

9. It shall be the duty of the employer to keep posted

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Labour

[Subsidiary]

Hours of Work (Cinema Employees) Regulations

be posted on
premised.
[Reg. 1/1966A]

up in a conspicuous place on the premises one or more copies
of these Regulations.

Penalties.

10. Any person who commits a breach of these
Regulations shall be liable to a fine of one hundred dollars.

[Reg. 24/1981
1/1982]

FIRST SCHEDULE

Class of Employee	Normal Hours per week
Operators	45 hours
Cashiers	20 hours
Clerical Assistants	45 hours
General Staff	48 hours
Guards	48 hours

[Subsidiary]

Hours of Work (Cinema Employees) Regulations

reg. 6

SECOND SCHEDULE

REGISTER OF HOURS OF WORK OF EMPLOYEES

Week Ending

(1)	(2)	(3)	day	Finish	
				Start	
				Total hours worked	
				Meal Breaks	
				a.m. p.m.	
				Finish	
				Start	
				Rate	
				Category of work	
				Names of Employees	

Hours of Work (Cinema Employees) Regulations

L.R.O. 1/2012

[Subsidiary]

Hours of Work (Cinema Employees) Regulations

(5)	Total hours worked weekly	
(6)	Overtime hours worked weekly i.e. total in col.(4) less 56 hours	
(7)	Ordinary time wages.	
(8)	Overtime wages.	
(9)	Gross wages	
(10)	Deductions	
(11)	Net Wages	
(12)	Received the amount due (signature of employee and date)	

Reg. 4/1962
22/1968
9/1971
4 of 1972]

HOURS OF WORK (LAUNDRIES) REGULATIONS

made under section 28

Citation.

1. These Regulations may be cited as the Hours of Work (Laundries) Regulations.

Interpretation.
[Reg. 5/1961]

2. In these Regulations—

“employee” means any person employed in a laundry;

“laundry” means any place where persons are employed by way of trade or business or for purposes of gain in washing, ironing, pressing or dry cleaning of clothing, bed-linen, or table-linen and on all duties incidental thereto; and also where any such persons are employed on any of the afore-mentioned duties incidental to any other trade or business.

Normal hours
of work for an
employee.

3. The number of hours which may normally be worked by any employee shall not exceed eight on any day or forty-four in any week, and such normal hours of work shall commence not earlier than 6 o'clock in the morning and end not later than 6 o'clock in the afternoon.

Off day.
[Reg.22/1968
9/1971]

4. No person to whom these Regulations apply shall be employed in or about the business of a laundry on any Sunday, Christmas Day, the day after Christmas Day if Christmas falls on a Sunday, Eid-UI- Azha Day, or, if that day is a Sunday, the following day, Phagwah Day, or if that day is a Sunday, the following day, Good Friday, Easter Monday, Labour Day, that is to say the 1st May, or, if that day is a Sunday the following day:

Provided that the foregoing provisions of this regulation shall not apply to any person who is employed in or about the business of a Laundry situate within the precincts of any hotel or hospital.

Overtime.

5. Every hour or part thereof worked by an employee in excess of the normal hours shall constitute overtime.

Interval for meals.

6. Every employee shall be entitled on any day on which he works to an interval of not less than one hour for a meal, provided that the meal hour shall commence not earlier than 11 o'clock in the morning and not later than 1 o'clock in the afternoon.

Posting up of copies of these Regulations

7. It shall be the duty of the employer to keep posted up in a conspicuous place on the premises one or more copies of these Regulations.

Penalty for breach.
[4 of 1972]

8. Any person who commits a breach of these Regulations shall be liable to a fine of one hundred dollars.

Reg.6/1975
[5/1980
23/1981
4/2008]

HOURS OF WORK (SECURITY GUARDS) REGULATIONS

made under 28(1)

Citation.
[4/2008]

1. These Regulations may be cited as the Hours of Work (Security Guards) Regulations.

Interpretation.
[23/1981
4/2008]

2. In these Regulations –

“security guards” means any person wholly or mainly employed to watch over any specific property except that employment only to operate or superintend the use of a gate, shall not be deemed to constitute employment to watch over property for the purposes of this definition.

Normal hours
work.
[5/1980
4/2008]

3. (1) The number of hours which may normally be worked by a security guard employed on a daily or hourly basis, shall not exceed eight in any day.

(2) The number of hours which may normally be worked by a security guard employed otherwise than a daily or hourly basis, shall not exceed forty four in any week.

Off day.
[4/2008]

4. A security guard employed otherwise than on a daily or hourly basis shall be allowed by his employer a continuous period of twenty four hours in every week during which he shall not be required by his employer to be on duty:

Provided that any such period shall not be disregarded in reckoning the number of hours worked by a security guard.

Penalties for
breach.

5. Any persons who commits a breach of these Regulations shall on summary conviction be liable to a fine of one hundred dollars.

[Subsidiary]

Labour (Statistics) Regulations

Reg. 28/1953

LABOUR STATISTICS REGULATIONS*made under section 34*

Citation.

1. These Regulations may be cited as the Labour (Statistics) Regulations.

Interpretation.

2. In these Regulations—

"cinema" means any place where exhibitions of a public nature are given of pictures or other optical effects by means of a cinematograph or similar apparatus;

c.80:01

"drug store" means any place or premises required to take out a licence under section 24 or section 25 of the Tax Act;

"dry goods store" means any place or premises used solely or mainly for the sale of dry goods either by way of wholesale or retail trade;

"employee" means any person employed in any of the businesses specified in the First Schedule to these regulations whose wages have been prescribed by order made under section 8 of the Act;

"employer" means any person carrying on any of the businesses specified in the First Schedule, and includes the manager of person for the time being in charge of any such business;

"grocery" means any place or premises used solely or mainly for the sale of groceries;

"hardware store" means any place or premises used solely or mainly for the sale of furniture, hardware or

ironmongery either by way of wholesale or retail trade;

"quarter" means the period of three months ending 31st March, 30th June, 30th September, 31st December in any year.

Employees
to submit
quarterly
returns.

3. Every employer shall send to the Minister within fourteen days of the end of each quarter a return of employees in the appropriate form set out in the Second Schedule.

Penalties.

4. Any employer who contravenes or fails to comply with any of these regulations shall be liable on summary conviction to a fine of three hundred dollars.

reg 2

FIRST SCHEDULE

BUSINESSES

Groceries
Hardware Stores
Dry Goods Store
Drugstores
Cinemas

reg. 3

SECOND SCHEDULE

FORM 1

GROCERIES, HARDWARE STORES, DRY GOODS STORES

[Subsidiary]

Labour (Statistics) Regulations

AND DRUG STORES

(Chapter 98:01)

In accordance with regulation 3 of the Labour (Statistics) Regulations, the following particulars are submitted in respect of employees for the quarter ending.....

Name of Employer.

Nature of business

Address of business in respect of which this return is made

Age Group	Sex	No. in employment first day of quarter				No. taken into entry during quarter				No. dismissed during quarter				No. in employment first day of subsequent quarter			
		Clerks	Cash boy	Messenger	Porter	Clerks	Cash boy	Messenger	Porter	Clerks	Cash boy	Messenger	Porter	Clerks	Cash boy	Messenger	Porter
14 years and under 16 years	M F																
16 years and under 18 years	M F																
18 years and over	M F																

(Signed).....

Employer

Dated the..... day of.....20....

FORM 2
CINEMAS
LABOUR ACT
(Chapter 98:01)

In accordance with regulation 3 of the Labour (Statistics) Regulations, the following particulars are submitted in respect of employees for the quarter ending.....

Name of Employer.....

.....

Nature of cinema

.....

Address of cinema.....

.....

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[Subsidiary]

Labour (Statistics) Regulations

Age Group	Sex	No. in employment first day of quarter			No. taken into entry during quarter			No. dismissed during quarter			No. in employment first day of subsequent quarter		
		General staff (ushers, ticket collectors) and janitors, etc.)	Typist or clerical assistants	Cashiers or ticket sellers	General staff (ushers, ticket collectors) and janitors, etc.)	Typist or clerical assistants	Cashiers or ticket sellers	General staff (ushers, ticket collectors) and janitors, etc.)	Typist or clerical assistants	Cashiers or ticket sellers	General staff (ushers, ticket collectors) and janitors, etc.)	Typist or clerical assistants	Cashiers or ticket sellers
14 years and under 16 years	M F												
16 years and under 18 years	M F												
18 years and over	M F												

(Signed).....

Employer

Dated the..... day of.....20.....

Reg. 5/1962

LAUNDRIES RECORDS REGULATIONS

made under section 34

Citation.

1. These Regulations may be cited as the Laundries Records Regulations.

Interpretation.

2. In these Regulations—

“employee” means any person employed in a laundry;

“laundry” means any place where persons are employed by way of trade or for purposes of gain in washing, ironing, pressing or dry cleaning of clothing, bed-linen or table-linen and on all duties incidental thereto; and also where any such persons are employed in any of the aforementioned duties incidental to any other trade or business.

Register of wages, hours and conditions of work.

3. (1) In every laundry, the employer shall keep a register (hereinafter referred to as “the register”) containing a record of the wages, hours and conditions of work of his employees in the form set out in the Schedule.

(2) The register shall be produced on request for inspection by the Chief Labour Officer, the Deputy Chief Labour Officer, the Assistant Chief Labour Officer or any Senior Labour Officer or Labour Officer.

(3) The register shall be kept from day to day and shall be kept up to date.

Offences.

4. Any person who commits a breach of regulation 3 shall be liable, on summary conviction, to a fine of forty dollars.

reg. 3

SCHEDULE

Register of Wages, hours and conditions of work in.....
Laundry.

Name of Employee	Address	Category of work	Date of engagement	Date, month and year of birth of employee under 16 years of age	Date of termination of engagement

LAWS OF GUYANA

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Labour

[Subsidiary]

Laundries Records Regulations

Week ending.....20.....

(1)	(2)	.day	Start	
			Total hours or pieces	
			Finish	
			Meal hour	
			Start	
		Rate		
		Category of work		
		Name of Employ-ee*		

* When an employee undertakes more than one category of work his name should be shown separately in each category.

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[Subsidiary]

Laundries Records Regulations

(4)	Hours of Work	day	Total hours or pieces	Overtime Total No. of overtime hours or pieces worked	Received the amount due. Signature of employee and date	(5)	(6)	(7)	(8)	(9)	(10)	(11)	(12)
			Finish										
			Meal hour										
			Start										
		day	Total hours or pieces										
			Finish										
			Meal hour										
			Start										
		day	Total hours or pieces										
			Finish										
			Meal hour										
			Start										
.....day	Total hours or pieces												
	Finish												
	Meal hour												
	Start												
....day	Total hours or pieces												
	Finish												
	Meal hour												

R. 1/1943

LABOUR (ADVISORY COMMITTEES PROCEDURE) RULES

made under section 36

Citation.

1. These Rules may be cited as the Labour (Advisory Committees Procedure) Rules, and shall be applicable to any Advisory Committee appointed under either section 6 or section 7 of the Act.

Interpretation

2. In these Rules—

“chairman” means the person appointed as chairman of any Committee appointed under section 6 or under section 7 of the Act;

“Committee” means an Advisory Committee appointed under section 6 or under section 7 of the Act.

Enquiry by
Committee.

3. (1) Any person may, by notice in writing signed by the chairman, be required—

- (a) to attend any meeting of the Committee and give evidence before the said Committee; or
- (b) to attend any meeting of the Committee and produce any document which, in the opinion of the Committee, is relevant to the subject matter of the inquiry; or
- (c) to furnish in such manner as may be specified such particulars as may be required by the Committee.

(2) Any person who wilfully fails to comply with

[Subsidiary]*Labour (Advisory Committees Procedure) Rules*

any notice in writing addressed to him under this section shall be liable, on summary conviction, to a fine of fifty dollars.

Vacancy in
membership.

4. A Committee may continue to act notwithstanding any vacancy which may for any reason occur in its membership:

Provided that this rule shall not apply in the case of a Committee appointed under section 7 of the Act if the occurrence of the vacancy causes either the employers or the employees to be without representation on the Committee.

Assessors.

5. A Committee may at any time, if it deems it expedient so to do, call in the aid of one or more assessors, specially qualified in the opinion of the Committee, to give assistance to the Committee in the matter under inquiry or in any matter relevant to such inquiry.

Committee's
report.

6. (1) Each report by a Committee shall be in writing and shall be addressed to the Minister.

(2) Such report shall be signed by the members of the Committee who concur therein and it shall be accompanied by any report signed by any dissenting member of the Committee.

(3) Such report shall be forwarded to the Minister as soon as conveniently possible after the conclusion of the inquiry or, if the Minister has requested an interim report, as soon as conveniently possible after the receipt of such request.

Procedure.

7. Subject to these Rules, any Committee may regulate its procedure in such manner as it may deem expedient to enable it to submit its report to the Minister expeditiously.